TEMPLATE P41 · DECLARATIONS OF INDEPENDENCE AND CONFLICTS OF INTEREST

Declarations of independence and conflicts of interest

Provides three models — the annual declaration by members of the bodies, the AI Auditor's declaration of independence and the declaration of independence and interests by the consultant or external adviser — and maintains the register of declarations and abstentions.

Fernando García Varela Version 0.1 (working draft) 19-09-2026 Draft for review

IN THIS DOCUMENT

01 Instructions for use

02 Identification

03 Model A · Annual declaration by members of bodies

04 Model B · AI Auditor's declaration of independence

05 Model C · Declaration of independence and interests by the consultant or external adviser

06 Assessment and measure

07 Register of declarations

08 Register of abstentions

09 Quality criteria

10 Approval and verification

11 Version control

Legal notice and disclaimer. SEVEN-G is a reference methodological framework provided "as is" and for information purposes only. It does not constitute legal, regulatory, financial or professional advice, nor does it guarantee compliance with any law or standard. References to general regulation (such as the EU AI Act, the GDPR, DORA or NIS2), to technical standards and to regulation specific to each sector or jurisdiction may be incomplete, may not apply to a particular case or may become out of date as a result of regulatory changes, interpretations or supervisory positions after their consultation date. **Each organisation that uses SEVEN-G is solely responsible for identifying the regulation that applies to it, verifying that it is current and certifying its own regulatory compliance**, with the appropriate qualified advice. This methodology is a generic, free aid shared with the community so that nobody has to start from scratch; each person or organisation can and should adapt it to its own use. It must not be inferred that its legally sensitive parts have been reviewed by legal counsel: those reviews, for each company or sector, are the ultimate responsibility of the company, consultant or organisation that uses it. Although every effort is made to keep it up to date, some regulation may have changed without being reflected here. To the fullest extent permitted by law, the author accepts no responsibility whatsoever for the effects of its application in any organisation or for its full applicability. The methodology does not grant certification of any kind. The author accepts no liability for any use made of this content or for any decisions taken on the basis of it. The data, figures, companies and cases in the examples are fictitious or illustrative.

Why it matters. Segregation of duties only protects if it is known who has interests in what. A prior declaration makes it possible to abstain, replace or reinforce verification before deciding; without it, a conflict is discovered when it has already biased a *gate*, a supplier assessment or an audit. Failing to declare a conflict that has affected a *gate* decision is a major nonconformity (30 §12), and a *gate* verified by an auditor who is not independent must be verified again (38 §3.1).

01

Instructions for use

Aspect	Guidance
When it is used	Model A: on joining a body, once a year and whenever a conflict arises. Model B: before each audit or verification engagement. Model C: at the start of any audit (M3) or board advisory (M4) service, at the start of the mandate of the director or adviser with AI experience, and whenever the situation changes (91 §5.5; 61 §10.3).
Who completes it	The declarant.
Who verifies it	The AI Office with compliance assesses A declarations (30 §12); the head of AI audit, B declarations; the board secretariat or the body commissioning the service, C declarations.
Who decides or approves	Whoever assesses decides the measure; if it concerns a director, the board's conflict of interest regime applies (CI-6).
Stage or moment	C2 and C5 (annual renewal of A declarations); at each Enterprise *gate* the AI Auditor checks that they are on record (30 §12, step 5).
Tool	T01 · Use case register: conflicts and abstentions alongside the affected decision (30 §13).
Reference document	30 §5.2 and §12; 38 §3.1; 91 §5; 61 §10.3; P03 §8.

Completion rules:

- Conflicts of the **roles in a use case** are declared in P03 §8; this template covers **members of bodies**, **auditors** and **third parties**, and consolidates the company register.
- **Actual, potential or apparent** conflicts are declared; another person carries out the assessment.
- A "no conflicts" declaration is also signed and recorded.
- Proposed code: **DCI-AAAA-NNN** (declaration of conflicts and independence), sequential per year.

02

Identification

Field	Content	Guidance
Code		DCI-AAAA-NNN.

Field	Content	Guidance
Model		A Member of a body · B AI Auditor · C Consultant or external adviser.
Declarant and position or organisation		
Body, engagement or service		Body of which the declarant is a member; use case, *gate* or audit; service model M1–M5.
Period covered		Financial year or duration of the engagement.
Date of the declaration		DD-MM-AAAA.
Reason		Joining · Annual renewal · New engagement · Change of situation.

03

Model A · Annual declaration by members of bodies

For members of the board, the board committee and the AI Committee, and heads of the AI Office (30 §12).

#	Question	Yes · No	Details
A1	Do you sponsor or have a build role in any AI use case decided by the body? (CI-1)		IA-AAAA-NNN codes.
A2	Does your variable remuneration depend on the **declared** value of AI use cases? (CI-2)		Objective and metric.
A3	Do you or a related person have an employment, commercial, shareholding or advisory relationship with an AI supplier of the company or one taking part in an assessment? (CI-3, CI-6)		Supplier and type of relationship.
A4	Have you participated in the previous twelve months in the design of controls or in the operation of systems that the body oversees? (I-10)		
A5	Do you have volume targets for use cases in production? (CI-5)		
A6	Is there any other circumstance that may affect your impartiality in AI matters?		

> **Declaration.** [Full name], member of [body] of [the Company], declares that the above information is complete and truthful, that they will abstain on matters in which they have a conflict and that they will notify [the secretariat of the body] of any change as soon as it occurs. Date and signature.

04

Model B · AI Auditor's declaration of independence

Before each engagement, with the levels in 38 §3.1. It is also signed by the technical experts supporting the auditor.

#	Requirement	Met (Yes · No)	Details or safeguard
B1	**Organisational.** My function reports functionally to the board committee and not to areas that sponsor the audited use case.		
B2	**Individual.** I have had no role in the use case or in the design, build or operation of the system.		
B3	**Individual.** I do not report hierarchically to the sponsor (I-5).		
B4	**Individual.** I have not advised on the audited controls in the previous twelve months (I-10).		
B5	**Economic.** I do not audit solutions that I or my organisation have designed, implemented or sold, or products of related companies (I-11); my remuneration does not depend on the result.		
B6	**Rotation.** I have not been the lead auditor of this Enterprise system for more than [three] consecutive financial years.		Number of financial years.
B7	**Threats.** I identify no self-review, self-interest, familiarity, intimidation or dependence on the auditee for technical evidence, or I state the safeguard applied.		

> **Declaration.** [Full name], AI Auditor assigned to [engagement or *gate*] of [use case or system], declares that they meet the above requirements and undertakes to notify the head of AI audit immediately of any circumstance that compromises their independence. Date and signature.

05

Model C · Declaration of independence and interests by the consultant or external adviser

Minimum content of 91 §5.5, with the situations in 91 §5.4 and 61 §10.3.

Field	Content	Guidance
Service requested		M1 Diagnosis · M2 Implementation · M3 Audit · M4 Board advisory · M5 Ongoing support.
Scope		Use cases, systems, processes or registers affected.
Services provided to the company and its group in the last three years		Model, scope and dates.
Compatibility according to 91 §5.2		Compatible · Compatible with caution · Incompatible, and cooling-off period (91 §5.3).
Relationships with technology or model suppliers		Alliances, commissions, resale.
Fee structure		If there are variable fees, only on value validated by management control or by an unrelated audit.
Sale of own tools		
People assigned		And whether any has worked in the company or in the scope during the cooling-off period.
Personal or corporate relationships with directors or executives		
Director or adviser with AI experience		Incompatibility with implementation services in the use cases they oversee; access to information through the board secretariat; confidentiality (61 §10.3).

> **Declaration.** [Organisation or person], in relation to [service] for [the Company], declares that the above information is complete, that none of the incompatibilities in 91 §5.2 applies and that it will notify any change to the body commissioning the service. Date and signature.

06

Assessment and measure

Procedure of 30 §12: declaration, assessment, measure, record and check.

Field	Content	Guidance
Conflict identified		Question or requirement affected.
Type		Actual · Potential · Apparent.
Measure		Abstention · Replacement · Additional verification · Board conflict regime · No measure (give reasons).
Matters or decisions affected		IA-AAAA-NNN, *gate*, engagement, P14 assessment.
Assessed by and date		Different from the declarant.
***(illustrative example)* Conflict**	A3: close family member employed by a supplier under assessment.	Actual · Abstention from the assessment and the contracting decision.

07

Register of declarations

Code	Model	Declarant	Body or engagement	Date	Conflict declared (Yes · No)	Measure	Next renewal	Status
DCI-AAAA-NNN	A · B · C							In force · Lapsed · Superseded

Code	Model	Declarant	Body or engagement	Date	Conflict declared (Yes · No)	Measure	Next renewal	Status
(illustrative example) **DCI-2026-004**	A	Person D	AI Committee	01-11-2026	No	—	01-11-2027	In force

08

Register of abstentions

Date	Body and meeting	Matter	Person	Reason (applicable CI or I)	Linked declaration	Resolution in minutes (P39)
					DCI-AAAA-NNN	

09

Quality criteria

#	Check	Status
1	All members of bodies have a Model A declaration in force for the financial year.	Met · Not met · Not applicable · Pending
2	Each auditor and expert on an engagement signed the Model B declaration before starting (38 §3.1).	
3	Every M3 or M4 service and every director or adviser with AI experience has a Model C declaration (91 §5.5; 61 §10.3).	
4	Each conflict has a type, a measure and an assessor other than the declarant.	
5	Abstentions are recorded in the minutes and in T01 alongside the affected decision.	
6	The AI Auditor checked the declarations at each Enterprise *gate*.	
7	Incompatibilities I-5, I-10 and I-11 of 30 §5 are respected.	

10

Approval and verification

Function	SEVEN-G role	Name and position	Date	Signature or reference
Declares	Member of a body · AI Auditor · Consultant or adviser			
Assesses (Model A)	AI Office with compliance			
Assesses (Model B)	Head of AI audit			
Assesses (Model C)	Board secretariat or body commissioning the service			
Checks at Enterprise ***gates***	AI Auditor			

Segregation of duties: nobody assesses their own declaration; the declarations of the head of the AI Office are assessed by compliance, and those of the head of AI audit by the board committee.

11

Version control

Completed document

Version	Date	Author	Changes

Template

Version	Date	Changes
0.1	19-09-2026	First version. Three declaration models (30 §12, 38 §3.1, 91 §5.5 and 61 §10.3) and registers of declarations and abstentions; proposes the code DCI-AAAA-NNN.